

24STCV03015 24STCV03015

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Case Number: 24STCV03015 Hearing Date: September 17, 2026 Dept: 414

24STCV03015 Jane LDK Doe v. Los Angeles Unified School

District, et al.

Thursday,

September 17, 2026

[TENTATIVE] ORDER GRANTING

IN PART PLAINTIFF JANE LDK DOE'S AMENDED MOTION TO TAX COSTS OF DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT (1776)

I.

BACKGROUND

The

complaint alleges that Plaintiff, a minor, was sexually battered and assaulted by Defendant, Juan "John" Colon, who served Defendant, Los Angeles Unified School District, as a volunteer coach and tutor at Westchester Enriched Sciences Magnets ("WESM"). The remaining allegations of the operative pleading that are at issue in this motion are (1) negligence (2) negligent supervision (3) negligent hiring, supervision, training, and retention; (4) negligent failure to warn, train, or educate; and (9) sexual abuse and harassment in the educational environment.

On

December 11, 2025, the Court granted the motion for summary judgment filed by Los Angeles Unified School District. On May 11, 2026, Defendant filed its Memorandum of Costs claiming total costs of \$20,402.28. Plaintiff moves to tax selected costs claimed. Plaintiff argues that claimed costs are not reasonably necessary

to the conduct of the litigation and are expressly disallowed by statute.

II.

LEGAL STANDARDS

A

prevailing party may recover costs as a matter of right. (Code Civ. Proc., § 1032 subd. (b). Section 1032 of the Code of Civil Procedure “is the fundamental statutory authority for awarding costs in civil actions.” (Leiper v. Gallegos (2021) 69 Cal.App.5th 284, 297.) Section 1033.5 “is a list of what is, and is not, allowable as a cost, [and] similarly is trial-court-oriented, with items exclusively related to trial court proceedings (e.g., references to jury fees, taking depositions, process servers, etc.).” (Stratton v. Beck (2018) 30 Cal.App.5th 901, 910.)

Allowable

costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (Cal. Code Civ. Procedure § 1033.5(c).) Items not expressly permitted under section 1033.5 may be allowed or denied in the court’s discretion. (Code Civ. Proc., § 1033.5 subd. (c)(4).)

The

verified Memorandum of Costs is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant. (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131). The objecting party has the burden of showing that an item is not properly chargeable. (Id.)

III.

DISCUSSION

A. Item

4 Deposition costs \$17,834.43

1)

Juan Colon.

Deposition costs are statutorily recoverable Code of Civil Procedure § 1033.5. (Code Civ. Proc., § 1033.5 (a)(3)(A).) Plaintiff contends the cancellation of fee for

Juan Colon's deposition should not be recoverable from Plaintiff because Defendant twice cancelled the deposition. Defendant agrees to withdraw the video cancellation fee of \$279. The remaining costs incurred for Juan Colon's deposition were necessary to the litigation as he was the alleged perpetrator.

2)

Nicole Colon.

Nicole

Colon is the plaintiff in this matter. Her deposition is reasonably necessary to the conduct of the litigation and expressly permitted. (Id.) Defendant withdraws the \$93.75 late charge.

Plaintiff

challenges expedited fees for the deposition transcript of Ingrid and Nicole Colon citing Hsu v. Semiconductor Systems, Inc. (2005) 126 Cal.App.4th 1330, 1342.) Hsu struck the expedited transcript fees because it is not permitted by statute.

Defendant

argues the expedited fees were necessarily incurred because Defendant had a hearing date of December 9, 2025, for its motion for summary judgment and needed the transcripts to prepare the motion. Plaintiff replies that the depositions took place on August 6 and 7, 2025. The hearing was four months later. The transcripts were used as evidence in Defendant's motion filed five days later on August 11, 2026.

The

Court does not find that the expedited fees were reasonably necessary. The filing and scheduling of the summary judgment motion and the taking of necessary depositions are events entirely within Defendant's control. Defendant does not explain why it waited until August of 2025 to take necessary depositions so close to the date it filed the motion.

Accordingly,

the Court strikes expedited fees of \$625.50 and \$836.55, for a total of \$1,462.05.

3)

Raine Green and Rachelle Thomas-Green.

Plaintiff

argues she noticed and paid for Raine Green's deposition. Defendant is still required to pay for a copy of the transcripts. Green was a member of the family with whom Plaintiff lived prior to moving in with the Colons. The cost of transcripts was incurred for both Raine and Rachell Thomas-Green. The depositions were reasonably necessary given their role as witnesses.

B. Item

5 Service of process \$1,594.11

1)

Aciel Bowie

Plaintiff agreed to produce Aciel Bowie, Plaintiff's mother, for deposition however, Defendant exercised its statutory right to use legal process. Plaintiff contends it was not reasonably necessary to incur that cost given Plaintiff's agreement. Defendant's opposition demonstrates why the deposition was necessary as Plaintiff identified her as a witness to events. Defendant argues it was entitled to use legal process to ensure attendance and compliance, and informal assurances do not provide the same protection or enforceability.

There is no evidence that the deponent was reluctant to appear or was otherwise uncooperative. Plaintiff identified her as a witness and agreed to produce her for deposition. While costs incurred for service is permitted, the cost must still be reasonably incurred. The Court strikes \$210.88 in costs incurred for service of the subpoena.

2) Juan Colon, Target Corporation, Kaiser Permanente

Plaintiff contends that the receipts do not match the requested amounts. Defendant concedes a typo for service of process on Juan Colon should be \$128.22. This cost is permitted as it was reasonably necessary to the conduct of the litigation.

The subpoena served on Target was for Plaintiff's employment records as she was employed parttime by Target. Plaintiff contends that these are "investigation" expenses that are not recoverable. However, as Defendant argues, Plaintiff asserted a lost earnings claim, and therefore, the information and subpoena for

service was reasonably necessary and statutorily permitted as a cost. The corrected cost of \$106.25 is permitted.

Plaintiff sought therapy at Kaiser Permanente. Plaintiff alleges she suffered emotional distress and mental anguish throughout the complaint. Costs incurred to subpoena documents were reasonably necessary and statutorily permitted.

Plaintiff challenges the fee to personally serve Plaintiff's law firm (Manly Stewart Finmaldi) with the deposition notice for Ingrid Colon. Defendant argues it incurred costs to serve notices of deposition of Raine Green and Rachell Thomas Green. Defendant explains the cost was \$145 incurred for personal service of Ingrid Colon. The cost was reasonably incurred because Defendant was required to personally serve Plaintiff's office in order to give sufficient notice.

3) Juvenile Court documents

Plaintiff contends she is not required to pay for Defendant's rejected request for documents from the Juvenile Court. Defendant explains this expense was for resubmission of records, not the original submission.

C. Item

14 Electronic filing fees \$809.74

Plaintiff

contends that filing and motion fees are waived as it is a government entity. Defendant explains that Plaintiff improperly conflates court filing fees with service provider charges. The Court requires electronic filing which results in a fee charged by the service provider. As such, they were necessarily incurred.

D. Item

15 Other \$164.00

Plaintiff

argues Defendant is not entitled to recover the cost of the transcript for the demurrer hearing and CMC. Defendant withdraws the request.

V. CONCLUSION

Based

on the foregoing, the Court strikes the following costs:

Juan Colon

cancellation fee

\$279.00

Late charge for

N. Colon deposition

93.75

Expedited

transcript fees

1,462.05

Aciel Bowie

subpoena

210.88

Other

164.00

Total stricken

\$2,209.68